

SUPERIOR COURT OF THE DISTRICT OF COLUMBIA
CRIMINAL DIVISION

DISTRICT OF COLUMBIA,
Respondent,

v.

JOHN DOE,
Movant.

DOCKET NO.: [TO BE CONFIRMED]

MOTION TO CORRECT A MISATTRIBUTED ARREST RECORD PURSUANT TO D.C. CODE § 16-806(g)

STATUTORY AUTHORITY

D.C. Code § 16-806(g) – Reaches an arrest attributed to a person who attests under oath that they were incorrectly identified or named, where the agency took no fingerprints at arrest and the arrested person presented no other reliable identification. The relief this subsection provides is correction of the publicly available records; it is not closure of the court file, and this Motion does not seek that.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the Superior Court of the District of Columbia, where the proceedings occurred.
2. Venue is proper in this Court because the criminal proceedings that are the subject of this motion occurred in the District of Columbia.

II. PARTIES

3. Movant is JOHN DOE, whose address is 1000 Sample Street NW, Washington, DC 20001.
4. Respondent is the District of Columbia.

III. FACTS AND CASE HISTORY

5. On or about 06/02/2019, Movant was charged with Arrest recorded against Movant's name that Movant states was incorrectly attributed (synthetic sample entry) by Metropolitan Police Department (synthetic sample entry).
6. The matter was assigned Docket Number [TO BE CONFIRMED].
7. On 07/15/2019, the matter was resolved with the following disposition: No conviction; Movant states Movant was not the person arrested (synthetic sample disposition).
8. The offense grade was: Not stated (synthetic).

IV. ELIGIBILITY ALLEGATIONS

9. Movant may be eligible for correction on the following basis: correction of a misattributed arrest record under D.C. Code § 16-806(g) (Movant attests under oath that Movant was incorrectly identified or named).
10. Movant attests under oath that Movant was incorrectly identified or named in connection with the arrest described above. This attestation is Movant's own (synthetic sample answer).
11. Movant states that no fingerprints were taken at the arrest (synthetic sample

answer).

12. Movant states that the arrested person presented no other reliable identification (synthetic sample answer).

13. Movant asks this Court to correct the publicly available records rather than to close them, which is the relief this subsection provides.

IMPORTANT: Movant may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Movant respectfully requests that this Court:

(a) Grant this Motion and enter an Order directing the correction of the publicly available records of the arrest incorrectly attributed to Movant in the above-captioned matter;

(b) Direct all criminal justice agencies having custody of such records to correct all records relating to this matter; and

(c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, JOHN DOE, declare under penalty of perjury that the statements made in this motion are true and correct to the best of my knowledge, information, and belief.

JOHN DOE

1000 Sample Street NW, Washington, DC 20001

Date: _____

[NOTE: Date of birth and Social Security Number should be added by movant if required by the applicable form or local court rules.]

VII. CERTIFICATE OF SERVICE

Serve the correct prosecutor: the U.S. Attorney's Office for DC or the DC Office of the Attorney General, depending on the case.

I certify that on _____, I served a copy of this Motion upon the prosecutor of record (the United States Attorney's Office for the District of Columbia or the District of Columbia Office of the Attorney General) at the following address:

[PROSECUTOR ADDRESS – CONFIRM USAO-DC OR DC OAG FOR THIS CASE]

Service method: [personal delivery / first-class mail / other as permitted by applicable court rules]

JOHN DOE

Date: _____

ATTACHMENTS

Attachments submitted with this motion:

- Certificate of Service
- [ANY DOCUMENT THE MOVANT CHOOSES TO FILE IN SUPPORT OF THE MISIDENTIFICATION – MOVANT ENCLOSURES COPIES ONLY]

Prepared by movant using LegalEase RCAP. This is not an official court form.